

		Procedure section 706.051, subdivision (b), "the portion of the judgment debtor's earnings that the judgment debtor proves is necessary for the support of the judgment debtor or the judgment debtor's family supported in whole or in part by the judgment debtor is exempt from levy" under the Wage Garnishment Law. The court must take into account all income available to the Debtor and his family, including the spouse's separate earnings. (Code of Civ. Proc., § 703.115.) Here, Debtor failed to prove the \$1,020.05 subject to the withholdings order is necessary for his support and/or the support of his family. Based on Debtor's financial statement, the stated monthly income of Debtor and his spouse (excluding his mother-in-law) exceeds monthly expenses by \$567.90. If his mother-in-law's income is included, it exceeds monthly expenses by \$1,838.90. In addition, the storage, pets and miscellaneous household expenses are not adequately supported or justified. Finally, there is no showing that the numerous other credit card and other debt has been reduced to a judgment and subject to enforcement. Debtor has not met his burden to establish the amount being withheld meets the standard of necessary for support. The claim of exemption is therefore DENIED. Counsel for Creditor is ordered to give notice of this ruling.
10.	<i>Jhumra vs. Orange County Global Medical Center, Inc.</i> 2025-01483496	Before the court is the motion to designate case complex filed by plaintiffs Khusro Jhumra by and through his guardian ad litem Maliha Siddiqui, and Maliha Siddiqui. As more fully set forth below, the motion is DENIED. The designation of a case as complex is governed by California Rules of Court, rule 3.400, et seq. Rule 3.400(a) provides, a "'complex case' is an action that requires exceptional judicial management to avoid placing unnecessary burdens on the court or the litigants and to expedite the case, keep costs reasonable, and promote effective decision making by the court, the parties, and counsel." Rule 3.400(b) establishes a nonexclusive list of factors the court must consider in determining whether a case is complex. The factors include "whether the action is likely to involve: [¶] (1) Numerous pretrial motions raising difficult or novel legal issues that will be time-consuming to resolve; [¶] (2) Management of a large number of witnesses or a substantial amount of documentary evidence; [¶] (3) Management of a large number of separately represented parties; [¶] (4) Coordination with related actions pending in one or more courts in other

		counties, states, or countries, or in a federal court; or [¶] (5) Substantial postjudgment judicial supervision.” The factors stated in rule 3.400(b) are not an exhaustive list of the factors a court must consider, nor must all the identified factors be present to deem a case complex. Rather, the court must consider the totality of the circumstances presented in the particular case and what is needed to manage and potentially try the case. The factors identified in rule 3.400(b) are simply illustrations of the type of considerations the court must evaluate and perhaps even just one of those factors could justify a complex case designation in an appropriate case. (See <i>Ford Motor Warranty Cases</i> (2017) 11 Cal.App.5th 626, 641, <i>First State Ins. Co. v. Superior Court</i> (2000) 79 Cal.App.4th 324, 332.) Rule 3.400(c) identifies the following types of claims as provisionally complex: “(1) Antitrust or trade regulation claims; [¶] (2) Construction defect claims involving many parties or structures; [¶] (3) Securities claims or investment losses involving many parties; [¶] (4) Environmental or toxic tort claims involving many parties; [¶] (5) Claims involving mass torts; [¶] (6) Claims involving class actions; or [¶] (7) Insurance coverage claims arising out of any of the claims listed in (c)(1) through (c)(6).” “With or without a hearing, the court may decide on its own motion, or on a noticed motion by any party, that a civil action is a complex case or that an action previously declared to be a complex case is not a complex case.” (Cal. Rules Ct., rule 3.403.) Neither the parties’ stipulation nor the lack of any opposition to a motion to deem a case complex justifies granting such a motion. As with motions to seal documents, the court must independently review the matter and determine whether a case meets the standards of rule 3.400. The within action arises out of a medical malpractice claim wherein plaintiff Khusro Jhumra alleges he suffered a brain injury while under the care of the defendants. There is no claim this matter falls within any of the categories of cases deemed provisionally complex by rule 3.400(c). Accordingly, this motion turns on the court’s evaluation of the factors identified in rule 3.400(b) and related considerations.
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	Plaintiff asserts this case is complex based on the number of anticipated non-expert and expert depositions, the number of witnesses, the number of parties and counsel, and the volume of documentary evidence. As for the depositions, Plaintiffs state they anticipate taking 23 depositions (Hodes Decl. ¶2) and they may designate eight experts. (Hodes Decl. ¶3) The court, however, is not persuaded this case meets the threshold for being deemed complex. Complicated does not equate to complex within the meaning of rule 3.400. The judges of this court's unlimited civil panel are experienced in handling complicated cases and trials and have many tools available to them to handle and manage larger cases. It is not uncommon for them to hear cases with many witnesses. Moreover, a large number of depositions does not necessarily equate to a large number of trial witnesses. Our judges also are experienced with handling cases involving a large number of documents. Indeed, it is not unusual for medical malpractice, business disputes, real estate disputes, and many other types of cases our unlimited civil panel hears to involve a large volume of documentary evidence. Given the brain and other injuries allegedly involved in this case, it is clear the documentary evidence in this case will be extensive, but the court is not convinced it is sufficient to warrant a complex case designation. For better or worse, as business and society has transitioned from paper files to electronic files and communications, the volume of documents involved in any litigation has expanded significantly, along with the ability and tools of counsel and the court to manage documents. The volume of parties and counsel involved also does not support a complex case designation. This case involves two plaintiffs represented by the same law firm. There appears to be approximately 17 defendants, but many of them share counsel such that there are only five defense firms involved. In the end, whether considered individuals or cumulative, and based on the totality of the circumstances presented, the standards in rule 3.400 do not support deeming this case to be complex. Based on the foregoing, the motion is DENIED. Plaintiffs' counsel is ordered to give notice of this ruling.
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